

STATE OF VERMONT

SUPERIOR COURT

Unit

CRIMINAL DIVISION

Case No. 1276-11-24 Frcr

In RE: Maria-Alejandra O'Shaughnessy-Whitfield

DOB 1968-12-31

PETITION TO EXPUNGE CRIMINAL HISTORY

A person may file a petition with the court requesting expungement of a criminal history record related to a conviction if the person was convicted of an offense for which the underlying conduct is no longer prohibited by law or designated as a criminal offense.

The above-named Defendant hereby requests that the Court order that his/her criminal history record be expunged. As grounds for the request, Defendant hereby states as follows:

1. **Charges:** I am requesting that the criminal records for the following offense(s) be expunged:

	Description of Offense	Year	Docket Number (If Any)
1.			
2.			
3.			

If more than one offense is listed, the offenses must relate to the same incident.

2. **Record of Convictions:**

☐ I was convicted of the offenses.

If you were convicted, please provide the following about your conviction:

a. Date of conviction: _____

b. I completed all of the conditions of my probation:

☐ Yes – Date of Completion: _____

☐ No

c. Any restitution ordered by the Court has been paid:

☐ Yes

☐ No

☐ Restitution was not ordered

d. The offense or offenses are no longer prohibited by law:

☐ Yes

☐ No

☐ I was **not** convicted for the offenses listed above.

If you were cited or arrested for the offense, but never convicted, answer the following questions and then skip to question 3.

☐ I was cited or arrested, by (name of arresting law enforcement agency or department)

_____, but a charge was never filed with the Court.

☐ A charge was filed, but the Court did not find probable cause.

☐ A charge was filed and later dismissed by the Court.

3. List any new charges or convictions you have received since the date of the offense listed in question 1.

Offense	Date of Offense	Date of Charge	Date of Conviction

4. I believe that expungement of my criminal history is in the interests of justice because:

5. If the petition is granted, the court will send a copy of the order to the defendant, the defendant's attorney, the prosecuting attorney's office, the Vermont Crime Information Center, the arresting agency, the Restitution Unit of the Vermont Center for Crime Victim Services, and the Department of Motor Vehicles if pertaining to a motor vehicle charge. If there are other state entities the court should notify, please list the agency name and address here:

State Agency	Address

Documents from Other Parties in the Case

I understand that the other parties in the case are required to provide me with a copy of all documents they file with the court. If I consent, the other parties may send me documents by email instead of by mail.

I consent to receive documents from the other parties at the email provided below:

☐ YES ☐ NO

Date of Signature

Signature of Defendant

Maria-Alejandra O'Shaughnessy-Whitfield

Printed Name of Defendant

1188 Upper Notch Crossing Road, Apartment 14B

Address

South Burlington, Vermont 05403-2214

City, State, Zip

(802) 555-0199 ext. 4417

Phone

cc: State's Attorney or Attorney General's Office

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Email Address

STATE OF VERMONT

SUPERIOR COURT

Unit

CRIMINAL DIVISION

Case No. 1276-11-24 FrCr

In RE: Maria-Alejandra O'Shaughnessy-Whitfield

DOB: 1968-12-31

STIPULATION TO EXPUNGE CRIMINAL HISTORY RECORD

We, the undersigned Defendant and State's Attorney, hereby agree that the offense(s) meet the requirements for expungement pursuant to 13 V.S.A. §7602 and that the Court may issue an Order to expunge the criminal history record for the offense(s) described below:

Description of Offense	Date of Offense	Incident Number	Docket Number (if any)

We further understand that the effect of this Order will be to expunge any records of arrest, conviction or sentencing for this/these offense(s) and that the Defendant will hereafter be treated in all respects as if he or she had never been arrested, convicted, or sentenced for the offense(s).

If the petition is granted, the court will send a copy of the order to the defendant, the defendant's attorney, the prosecuting attorney's office, the Vermont Crime Information Center, the arresting agency, the Restitution Unit of the Vermont Center for Crime Victim Services, and the Department of Motor Vehicles if pertaining to a motor vehicle charge. If there are other state entities the court should notify, please list the agency name and address here:

State Agency	Address

Documents from Other Parties in the Case

I understand that the other parties in the case are required to provide me with a copy of all documents they file with the court. If I consent, the other parties may send me documents by email instead of by mail.

I consent to receive documents from the other parties at the email provided below:

☐ YES ☐ NO

Defendant:

Date:

Signature

Printed Name Maria-Alejandra O'Shaughnessy-Whitfield

Mailing Address

1188 Upper Notch Crossing Road, Apartment 14B
South Burlington, Vermont 05403-2214

Phone Number (802) 555-0199 ext. 4417

Email Address

State's Attorney:

Date:

Signature

Printed Name

ORDER

Based upon the agreement of the Defendant and the State's Attorney and pursuant to 13 V.S.A. §7602, it is hereby ORDERED that criminal history record of the offense(s) described above be expunged.

All records related to the arrest, conviction or sentencing for this/these offense(s) shall be expunged and that the Defendant will hereafter be treated in all respects as if he or she had never been arrested, convicted of sentenced for the offense(s).

cc: State's Attorney
Arresting Agency
Diversion
DMV, if applicable
VCIC
Defendant
Defender General
Attorney General

STATE OF VERMONT

SUPERIOR COURT

DIVISION

Unit

Case No. _____

APPLICATION TO WAIVE FILING FEES AND SERVICE COSTS

Case Name

Name: (First & Last) _____

Street Address: _____

City/State/Zip: _____

Mailing Address: (if different from street address) _____

Email Address: _____

Home / Cell Phone: _____ Work Phone: _____

Total Number Living in Household (spouse, partner & dependents) _____

Employment

Are you employed? ☐ Yes ☐ No *If Yes, list Employers' Name & Address*

Employer Name

Employer Address

Section 1: Public Assistance:

Do you receive any kind of government benefit that is based on need, dependent children, or other income sensitive criteria? ☐ Yes ☐ No

Type of Assistance: _____ Monthly Amount \$ _____

IF YOU RECEIVE ANY PUBLIC ASSISTANCE, YOU DO NOT NEED TO FILL OUT THE REMAINDER OF THE FORM. GO TO THE SIGNATURE AND DECLARATION SECTION ON THE BOTTOM OF PAGE 2.

Section 2: Income and Expenses

If you do NOT receive public assistance, fill out the following:

Income	Expenses
Your Current Monthly Income Gross Income from Wages Unemployment \$ _____ Compensation \$ _____ Child Support \$ _____ Other Income \$ _____ <i>(including Social Security Disability Income ("SSDI"), Disability Insurance & Social Security retirement benefits)</i> Self-Employment/Business Income \$ _____ <i>(other than wages)</i> Total Monthly Income \$ _____ Total Income in the past 12 months \$ _____	Your monthly household expenses Rent or Mortgage Payment \$ _____ Electric Service \$ _____ Phone \$ _____ Fuel (heat and/or gas) \$ _____ Food \$ _____ Clothing \$ _____ Medical \$ _____ Child Support \$ _____ Auto Loan Payment \$ _____ Property Taxes \$ _____ Insurance (health, auto, etc.) \$ _____ Other Expenses \$ _____ Total Expenses \$ _____

Section 3: Other Assets

I have additional assets: ☐ Yes ☐ No If Yes, describe them below

Vehicles	Make, Model, Year	Fair Market Value (FMV)	Amount Owed	Net Value
		\$	\$	\$
		\$	\$	\$
		\$	\$	\$
		\$	\$	\$
Real Property	Description	FMV	Mortgage	Net Value
		\$	\$	\$
		\$	\$	\$
Cash Assets				
	Cash on Hand	\$		
	Checking Account	\$		
	Savings Accounts	\$		
	Total Cash Assets	\$		
Other Assets	Description	FMV	Use additional sheets as necessary	
(examples - tools, equipment, recreational vehicles, electronics, stocks, bonds, etc.)				

Section 4: Additional Information

These are additional reasons why I cannot afford the fees:

I request the Court waive filing fees and/or pay service fees in this case because of my low income.

Section 5: Signatures and Declaration

I declare that the above statement is true and accurate to the best of my knowledge and belief. I understand that if the above statement is false, I will be subject to the penalty of perjury, or other sanctions in the discretion of the court.

Date

Applicant Signature

Printed Name

FILING AND EXPECTATION INSTRUCTIONS

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case No.: 1276-11-24 FrCr

Route: Petition to Expunge a Conviction for Conduct No Longer Prohibited by Law, 13 V.S.A. Sec. 7602

WHERE THIS GOES

File the completed packet with the VERMONT SUPERIOR COURT, CRIMINAL DIVISION, in the unit where your case was decided. Both the petition (200-00129) and the stipulation (200-00132A) print SUPERIOR COURT CRIMINAL DIVISION across the top of page 1, and the Unit box beside it is where that unit goes. If you do not know which unit decided your case, the docket number on your paperwork identifies it, and the clerk of any Superior Court unit can tell you from the docket number.

WHAT THIS PACKET CONTAINS

- 200-00129: Petition to Expunge Criminal History
- 200-00132A: Stipulation to Expunge Criminal History Record + Order
- 600-00228: Application to Waive Filing Fees and Service Costs (conditional only if a filing fee is actually charged and the participant cannot pay it; do not complete or file it on this track)
- These instructions.

WHAT TO EXPECT

This route asks the court to expunge a conviction because the conduct is no longer prohibited by law. Question 2(d) of the petition is where you say so, and it is your assertion about your own offence: the platform does not tick it for you and does not decide whether it is true of your record.

The stipulation (200-00132A) is an agreement between you and the prosecuting office. Take or send it to that office. If the prosecutor agrees, the prosecutor signs and files the stipulation with the court. If the prosecutor will not stipulate, file the petition on its own; a scheduled hearing is one of the stopping conditions below.

NO FILING FEE ON THIS TRACK

There is no filing fee for this petition. Under 32 V.S.A. Sec. 1431(e), the \$90 fee applies only to sealing a conviction for a violation of 23 V.S.A. Sec. 1201(a); it does not apply to this expungement under 13 V.S.A. Sec. 7602.

Form 600-00228 is conditional only where a filing fee is actually charged and the participant cannot pay it. No fee is charged on this track, so do not complete or file the fee-waiver form for this petition.

NO PARTICIPANT SERVICE OF PROCESS

You do not serve the prosecutor with process. If you file the petition, the court provides a copy to the

prosecutor. If you use the stipulation, take or send it to the office that prosecuted your case - the State's Attorney, or the Attorney General if that office prosecuted it. The prosecutor signs and files the stipulation with the court; under 13 V.S.A. Sec. 7602(a)(4), the respondent files it. The committed route record identifies that prosecuting office this way: "Whichever office prosecuted the offence, the State's Attorney or the Attorney General, unless that office authorises the other to act (Sec. 7602(a)(3))."

VALUES THE PLATFORM HOLDS BUT COULD NOT PRINT

Each value below is one this platform holds for you. It did not fit the box on the form at a size a court could read, so the platform left the box EMPTY rather than print something illegible or over a printed rule. WRITE EACH ONE IN BY HAND before you file.

- 200-00132A, page 1, beside "Email Address":
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

WHEN TO STOP AND GET A LAWYER

The committed track registry holds the following eleven stopping conditions. If any describes your case, stop and take the matter to a lawyer or legal-aid office rather than filing:

- The prosecutor opposes the petition, or the court schedules a hearing.
- A victim files a statement in opposition. Under Sec. 7608 the respondent must notify any known victim at the time the petition is filed, and the victim may offer a statement before any stipulation.
- Any criminal charge is pending anywhere. Under Sec. 7604 the court cannot act on the petition until the new charge is disposed of.
- The criminal history record mixes qualifying and nonqualifying offences.
- The participant holds a commercial driver's licence or commercial learner's permit and the offence was committed in a motor vehicle. Section 7602(a)(5) disapples the whole section, not only the DUI route.
- The offence may be a listed crime under 13 V.S.A. Sec. 5301(7).
- Any felony not plainly on the Sec. 7601(4)(B) list.
- Immigration consequences.
- The participant wants to attack the underlying conviction rather than clear the record.
- The participant cannot establish from a documented source that the conduct is no longer prohibited. "Old marijuana" is not enough.
- The conviction is a regulated-drug possession offence and the amount involved is not established.

WHAT THIS PACKET IS NOT

This is a prepared set of official Vermont forms. It is not legal advice, it is not filed for you, and it does not decide whether the court will grant expungement.

Route: Expungement of a conviction for conduct no longer a crime - 13 V.S.A. 7602